CHAPTER 13

# THE CRISIS OF DEMOCRATIC ORDER

**CHAPTER ESSENCE AT A GLANCE:**

Analyze the socio-economic and institutional factors culminating in the declaration of National Emergency on 25 June 1975 under Article 352: student agitations in Gujarat and Bihar, Jayaprakash Narayan's call for Total Revolution, the historic 1974 Railway Strike, executive confrontations with the judiciary over the Kesavananda Bharati verdict, the Allahabad High Court ruling, state repression and censorship during Emergency, and democratic restoration through the 1977 elections and the 44th Constitutional Amendment.

## 4 CORE PRINCIPLES TO UNDERSTAND FIRST

• **Background to the Crisis:** Severe inflation, monsoon failure, soaring oil prices following the 1973 oil crisis, and economic stagnation catalyzed widespread student agitations in Gujarat (Navnirman movement) and Bihar in 1974.

• **JP Movement and Total Revolution:** Jayaprakash Narayan emerged from political retirement to lead the Bihar movement, demanding the dismissal of the state government and issuing a clarion call for 'Sampoorna Kranti' (Total Revolution) across moral, cultural, and political spheres.

• **Judicial Confrontation and Proclamation:** The Allahabad High Court's 12 June 1975 judgment by Justice Jagmohan Lal Sinha invalidated Indira Gandhi's 1971 parliamentary election; on the night of 25 June 1975, President Fakhruddin Ali Ahmed proclaimed an Emergency citing 'internal disturbance' under Article 352.

• **Consequences and Democratic Lessons:** The Emergency suspended Fundamental Rights, silenced political opposition through preventive detentions, and imposed press censorship; the 1977 elections resulted in the historic defeat of the Congress, while the 44th Amendment restricted future Emergency powers.

## ESSENTIAL CONSTITUTIONAL ARTICLES & THEORIES

$$\text{Pre-Emergency Crisis (1974)} \iff \text{Gujarat Protests} + \text{Bihar Movement (JP Total Revolution)} + \text{Railway Strike}$$

*Triggers of Mass Extra-Parliamentary Opposition Mobilization*

$$\text{Judicial Landmark (1973)} \iff \text{Kesavananda Bharati Case} \rightarrow \text{Basic Structure Doctrine Protection}$$

*Constitutional Check Restricting Executive Supremacy*

$$\text{Emergency Proclamation (25 June 1975)} \iff \text{Article 352 (Internal Disturbance)} \rightarrow \text{Suspension of Fundamental Rights}$$

*Authoritarian Suspension of Constitutional Freedoms*

$$\text{Democratic Restoration (1977-1978)} \iff \text{Janata Party Victory} + \text{44th Amendment Act} \rightarrow \text{Armed Rebellion Safeguard}$$

*Constitutional Insulations Ensuring Democratic Resilience*

## CRUCIAL EXAM PRECAUTIONS & VALUATION RUBRIC SECRETS

• **Alert:** Remember that the National Emergency of 1975 was declared under Article 352 on grounds of 'internal disturbance', a vague phrase permanently replaced by 'armed rebellion' via the 44th Amendment in 1978.

• **Alert:** Do not confuse the Shah Commission with the Sarkaria Commission; the Shah Commission (headed by Justice J.C. Shah) investigated excesses committed during the 1975 Emergency.

• **Alert:** Notice that the Janata Party government of 1977 was the first non-Congress central government in India's history, headed by Morarji Desai.

## HIGH-YIELD CENTUM QUESTIONS & STEP-BY-STEP EXPLANATIONS

**1. Under which Article of the Constitution and on what ground was the National Emergency declared on 25 June 1975? [Score: 2 Marks]**

**Answer & Key Valuation Steps:**

• **Article:** Proclaimed under Article 352 of the Indian Constitution. **[1 Mark]**

• **Ground:** Declared on the ground of 'internal disturbance' by President Fakhruddin Ali Ahmed on the advice of Prime Minister Indira Gandhi. **[1 Mark]**

**2. What was the landmark judgment delivered by the Allahabad High Court on 12 June 1975? [Score: 2 Marks]**

**Answer & Key Valuation Steps:**

• **The Ruling:** Justice Jagmohan Lal Sinha declared Prime Minister Indira Gandhi's 1971 election to the Lok Sabha from Rae Bareli invalid on grounds of corrupt electoral practices (misuse of government officials for campaign work). **[1 Mark]**

• **Impact:** Legally meant she was no longer an MP and could not remain Prime Minister unless she secured a stay order or won re-election within six months, triggering political demand for her immediate resignation. **[1 Mark]**

**3. Describe the causes and significance of the student movements in Gujarat and Bihar in 1974. [Score: 3 Marks]**

**Answer & Key Valuation Steps:**

• **Gujarat Navnirman Movement:** Started in January 1974 by college students protesting against rising food grain prices, hostel fees, and high-level state corruption, ultimately forcing the dissolution of the state assembly. **[1 Mark]**

• **Bihar Movement:** Students protested against price rise, food scarcity, and unemployment, inviting veteran leader Jayaprakash Narayan to lead the movement under non-violent discipline. **[1 Mark]**

• **National Impact:** Transformed local student agitation into a nationwide political challenge demanding a total revolution against the authoritarian tendencies of the central government. **[1 Mark]**

**4. Explain Jayaprakash Narayan's concept of 'Total Revolution' (Sampoorna Kranti). [Score: 3 Marks]**

**Answer & Key Valuation Steps:**

• **Beyond Electoral Politics:** Aimed not merely at changing the government or removing Indira Gandhi, but at transforming society across moral, economic, social, and political spheres. **[1.5 Marks]**

• **Core Dimensions:** Advocated genuine participatory democracy, ending corruption, decentralizing state power to local communities, dismantling caste hierarchies, and empowering youth. **[1.5 Marks]**

**5. Highlight three major excesses committed during the period of National Emergency (1975 to 1977). [Score: 3 Marks]**

**Answer & Key Valuation Steps:**

• **Preventive Detention of Leaders:** Thousands of opposition leaders, activists, and dissidents (including JP, Morarji Desai, and Atal Bihari Vajpayee) were jailed without trial under MISA. **[1 Mark]**

• **Severe Press Censorship:** Newspapers were forbidden from publishing articles without prior governmental approval; electricity to major printing presses was cut off on the first night. **[1 Mark]**

• **Coercive Sterilization and Slum Clearances:** Extra-constitutional centers of power carried out forced vasectomies and aggressive demolition of slums (such as Turkman Gate in Delhi). **[1 Mark]**

**6. Examine the constitutional safeguards introduced by the 44th Constitutional Amendment Act of 1978 to prevent future abuse of Emergency powers. [Score: 4 Marks]**

**Answer & Key Valuation Steps:**

• **Replacing 'Internal Disturbance':** Substituted the phrase 'internal disturbance' with 'armed rebellion', ensuring an Emergency could no longer be declared on subjective political pretexts. **[1 Mark]**

• **Written Cabinet Advice:** Mandated that the President can proclaim an Emergency only upon receiving the written recommendation of the entire Union Cabinet, preventing unilateral prime ministerial proclamations. **[1 Mark]**

• **Special Majority Parliamentary Approval:** Required that every Emergency proclamation must be approved by both Houses of Parliament within one month by a two-thirds special majority. **[1 Mark]**

• **Protection of Fundamental Rights:** Explicitly provided that the right to life and personal liberty guaranteed under Articles 20 and 21 can never be suspended, even during a declared Emergency. **[1 Mark]**

**7. What were the major political and democratic lessons learned from the experience of the Emergency in India? [Score: 3 Marks]**

**Answer & Key Valuation Steps:**

• **Indestructibility of Indian Democracy:** Proved that Indian democracy cannot be easily dismantled; citizens utilized the 1977 elections to decisively defeat the ruling party and reassert liberty. **[1 Mark]**

• **Rise of Civil Liberties Organizations:** Sparked the birth of active civil liberties and human rights bodies like PUCL, establishing grassroots watchdogs against state tyranny. **[1 Mark]**

• **Judicial Reawakening and PIL:** The judiciary realized the danger of executive overreach, pioneering Public Interest Litigation (PIL) to actively defend the rights of marginalized citizens. **[1 Mark]**